

Alok Kumar v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 February 2020 · WRIT - C No. 7184 of 2020 · WRIT - C No. 7184 of 2020 · **Writ disposed; bill dispute remitted to Executive Engineer under cl. 6.5.**

HEADNOTE

Consumer sought a writ directing a corrected electricity bill dated 18 June 2019. Held, a consumer who disputes the bill has the remedy of approaching the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005; any such representation shall be considered and appropriate orders passed in accordance with law, as far as possible within one month of presenting a certified copy. Petition disposed of without examining the bill on merits.

FACTUAL SUMMARY

Alok Kumar filed a writ petition before the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. and the Executive Engineer, disputing an electricity bill dated 18 June 2019 and seeking a direction that the authorities issue a corrected bill. Counsel for the petitioner and for the distribution licensee were heard by a Division Bench. The order records no prior Clause 6.5 determination of that bill. The petition was disposed of the same day without inquiry into the billed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — representation to Executive Engineer

HOLDING

Where a consumer disputes an electricity bill and seeks a corrected bill in writ jurisdiction, the remedy is a representation to the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005; if made, that representation shall be considered and appropriate orders passed in accordance with law, as far as possible within one month of presentation of a certified copy of the order. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ seeking a corrected bill was not decided on merits; the consumer was sent to Clause 6.5 as the available remedy. ¶ 1

6.5-representation-as-appropriate-remedy The Court directed that a representation to the Executive Engineer, if made, be considered and appropriate orders passed in accordance with law within about one month. ¶ 1

bill-correction-clause-6.5 A prayer for a corrected bill dated 18 June 2019 was treated as a Clause 6.5 billing objection for the Executive Engineer, not a writ to be decided on the amount. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 18.6.2019 AND WHETHER A CORRECTED BILL WAS DUE

Writ disposed by remitting the consumer to Clause 6.5 without examining the bill on merits. ¶ 1